

MASTER SERVICES AGREEMENT (VERSION 2)

This Master Services Agreement (the "Agreement") is entered into as of March 1, 2024 (the "Effective Date"), by and between Alpha Inc, a California corporation ("Provider"), and Gamma Partners LLC, a Texas limited liability company ("Client").

ARTICLE 1 - SERVICES

1.1 Provision of Services. Provider shall provide the professional services described in each mutually executed Statement of Work ("SOW") incorporated herein by reference. Each SOW shall specify the deliverables, timeline and applicable fees.

1.2 Standard of Performance. Provider shall perform the Services in a professional and workmanlike manner consistent with generally accepted industry standards.

ARTICLE 2 - FEES AND PAYMENT

2.1 Fees. Client shall pay Provider the fees set out in the applicable SOW. Unless otherwise stated in the SOW, Provider shall invoice monthly in arrears.

2.2 Payment Terms. Client shall pay each correct invoice within thirty (30) days of receipt. Late payments accrue interest at the rate of 1% per month or the maximum rate permitted by law, whichever is lower.

2.3 Expenses. Client shall reimburse Provider for reasonable, pre-approved out-of-pocket expenses incurred in performing the Services.

ARTICLE 3 - TERM AND TERMINATION

3.1 Term. This Agreement begins on the Effective Date and continues for an initial term of twelve (12) months, renewing automatically for successive one (1) year periods unless either Party gives written notice of non-renewal at least sixty (60) days before the end of the then-current term.

3.2 Termination for Convenience. Either Party may terminate this Agreement for convenience upon ninety (90) days prior written notice to the other Party.

3.3 Termination for Cause. Either Party may terminate this Agreement immediately

ately upon written notice if the other Party materially breaches this Agreement and fails to cure the breach within thirty (30) days after receiving written notice describing the breach.

3.4 Effect of Termination. Upon termination, Client shall pay Provider for all Services performed and expenses incurred through the effective date of termination. Sections 2.2, 5, 6 and 7 survive termination.

ARTICLE 4 - INTELLECTUAL PROPERTY

4.1 Ownership of Deliverables. Upon full payment, Provider assigns to Client all right, title and interest in the deliverables developed specifically for Client under each SOW (excluding Provider's pre-existing tools, libraries and know-how).

4.2 Provider Tools. Provider retains all rights in its methodologies, software tools and generic know-how developed or used independently of the Services.

ARTICLE 5 - CONFIDENTIALITY

5.1 Mutual Obligation. Each Party shall protect the other Party's confidential information with reasonable care and use it only to fulfill its obligations under this Agreement.

5.2 Duration. The obligations in this Article 5 continue during the term of this Agreement and for three (3) years thereafter.

ARTICLE 6 - WARRANTIES AND LIMITATION OF LIABILITY

6.1 Mutual Warranties. Each Party represents and warrants that it has full power and authority to enter into this Agreement.

6.2 Disclaimer. EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT, THE SERVICES ARE PROVIDED "AS IS" AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

6.3 Limitation of Liability. NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES. EACH PARTY'S TOTAL AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT

EXCEED THE FEES PAID BY
CLIENT IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

ARTICLE 7 - GOVERNING LAW AND DISPUTES

7.1 Governing Law. This Agreement is governed by the laws of the State of California.

7.2 Escalation and Litigation. The Parties shall first attempt to resolve any dispute through good-faith negotiation between senior executives for a period of thirty (30) days. Failing resolution, either Party may bring proceedings in the state or federal courts located in San Francisco County, California, and each Party submits to their exclusive jurisdiction.

6.4 Warranty Period. Provider warrants that material defects in the deliverables reported by Client within sixty (60) days after delivery will be corrected at no additional charge.

ARTICLE 7A - INSURANCE

7A.1 Insurance. Provider shall maintain commercial general liability insurance with limits of not less than two million dollars (\$2,000,000) per occurrence and shall provide certificates of insurance upon Client's written request.

ARTICLE 8 - GENERAL

8.1 Force Majeure. Neither Party is liable for delays caused by events beyond its reasonable control, including natural disasters, war, labor disputes and failures of public infrastructure.

8.2 Assignment. Neither Party may assign this Agreement without the prior written consent of the other Party, except to a successor in a merger or sale of substantially all assets.

8.3 Notices. All notices must be in writing and delivered by email with confirmation, or by certified mail, to the addresses on the first page.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.